

## A

**MEASURE**

PASSED BY

**The National Assembly of the Church of England**

To make provision for the cure of souls when through disability arising from age or infirmity (whether bodily or mental) an incumbent of a benefice is unable to discharge adequately the duties attaching thereto and to make provision for payment for the discharge of such duties and for the pension of such incumbent.

[15th June 1945.]

**PRELIMINARY.****1. For the purposes of this Measure—****Definitions.**

- (1) the expression "benefice" comprehends all rectories with cure of souls vicarages perpetual curacies endowed public chapels and parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel and districts formed for ecclesiastical purposes by virtue of statutory authority and includes benefices in the patronage of the Crown or of the Duchy of Cornwall but does not extend to any of His Majesty's Royal Chapels or to any Royal peculiar or to any cathedral or capitular preferment or dignity nor to any chapel belonging to any college school hospital inn of court asylum or public or charitable institution nor to any private chapel :
- (2) the expression "incumbent" includes in relation to a benefice a rector with cure of souls, vicar, perpetual curate, curate in charge or minister :
- (3) the expression "bishop" means the bishop of the diocese in which the benefice concerned is situate :
- (4) the expression "pensions authority" means the Church of England Pensions Board constituted under the Clergy Pensions Measure, 1926 :

16 & 17 Geo 5.  
No. 6.

20 & 21 Geo. 5.  
No. 6.

- (5) the expression "Resignation Acts" means the Incumbents Resignation Acts, 1871 and 1887 :
- (6) the expression "Older Incumbents Measure" means the Clergy Pensions Older Incumbents Measure, 1930, and the expression "older incumbent" has the same meaning as in the Older Incumbents Measure.

Ministerial  
Committee.

2. There shall be constituted in every diocese a Committee, to be called "the Ministerial Committee," (hereafter in this Measure called "the Committee") which shall consist of clerks in Holy Orders beneficed or licensed under seal to officiate within the diocese in which the Committee is constituted, elected in accordance with the provisions of Part I of the First Schedule to this Measure.

#### PART I.

##### CURE OF SOULS IN CASE OF THE INCUMBENT'S DISABILITY.

Reference to  
Committee.

3.—(1) In any case where the bishop is satisfied that such action is proper, he may by notice in writing instruct the Committee to consider and report to him whether in their opinion an incumbent through disability arising from age or infirmity (whether bodily or mental) is unable to discharge adequately the duties attaching to his benefice and if so whether it is desirable—

- (i) that he should be given assistance in discharging such duties ; or
- (ii) that he should resign his benefice ;

and in the latter case whether any and if so what annual sum should be secured to him by way of pension in addition to the pension payable by the pensions authority under this Measure. A copy of the notice instructing the Committee shall at the same time be sent by the bishop to the incumbent.

(2) The bishop may, if he so desires, appoint in writing a clerk in Holy Orders as his representative to attend the meetings of the Committee when invited by them to do so.

Proceedings of  
Committee.

4.—(1) The Committee shall consider the questions put to them under the provisions of the foregoing section and shall invite the incumbent concerned and the bishop's representative, if any, to confer with them, either together or separately, and after such conference, or after there has been a reasonable opportunity for such conference, shall make their report in writing answering the questions put to them by the bishop :

Provided that they shall not report that the incumbent is unable to discharge adequately the duties of his benefice unless at least four members of the Committee shall have voted in favour of such report, nor shall they report that it is desirable that the

incumbent should resign his benefice unless at least five members of the Committee shall have signified their assent to such report in writing.

(2) At any meeting of the Committee to which the incumbent concerned is invited he may, if he so desires, be assisted, or in his absence represented, by a friend or adviser.

(3) The Committee may at any time before making their report request the bishop or his representative (if any) to make further enquiry into any matter and to communicate the result of such enquiry to the Committee.

(4) The Committee shall send a copy of their report to the incumbent.

5.—(1) In any case where the Committee have reported that Bishop's through disability arising from age or infirmity (whether bodily powers. or mental) an incumbent is unable to discharge adequately the duties of his benefice without assistance, and that it is desirable that he should be given assistance in discharging such duties, the bishop shall have the following powers in respect of such benefice any or all of which shall be exerciseable in his discretion and from time to time (that is to say) :—

- (i) Power with the consent of the incumbent to appoint and license an assistant curate or curates selected by the bishop with a stipend or stipends fixed by him in accordance with Part II of this Measure ;
- (ii) Power to direct that certain duties shall be discharged by such curate or curates instead of by the incumbent ;
- (iii) Power to give leave of absence to the incumbent for a period not exceeding two years and to make provision for the discharge of the duties of the benefice during such period of absence ;
- (iv) Power to make such other temporary provision for the discharge of the duties attaching to the benefice as the bishop may think fit.

(2) The bishop shall have power to determine the appointment of any curate appointed under this section after such notice as shall be specified in the licence granted to him by the bishop.

(3) The bishop shall cause a record of every exercise by him of the foregoing powers to be filed in the diocesan registry.

6.—(1) In any case where the Committee have reported that it Bishop's is desirable that the incumbent should resign his benefice or the incumbent has failed within fourteen days to consent to the power to declare benefice vacant appointment of an assistant curate, or curates, when requested by the bishop so to do, under the last preceding section, the bishop shall have power within six months after the receipt of the report of the Committee to execute a declaration of avoidance

declaring the benefice void as from a specified date not being less than three, or more than six months after the date of the declaration. Provided that as from the date of avoidance there shall be secured to the incumbent :—

- (a) the pension payable by the pensions authority in accordance with the next succeeding section ; and
- (b) such annual sum (if any) by way of additional pension as may be agreed between the Committee and the diocesan board of finance :

Provided also that in the case of an incumbent admitted to his benefice before the passing of this Measure the total annual sum secured to him by way of pension and additional pension (if any) shall not be less than two hundred pounds per annum.

(2) Such declaration of avoidance shall, so far as circumstances permit, be in the form contained in the second schedule to this Measure, and shall be signed in quadruplicate in the presence of one witness.

(3) One copy of the said declaration so completed shall be sent to the patron of the benefice, another to the incumbent, another to the pensions authority, and the remaining copy shall be filed in the registry of the diocese.

(4) The said declaration shall entitle the incumbent to receive from the pensions authority and from the diocesan board of finance respectively the annual sums stated therein to have been secured to him.

**Pension  
payable by  
pensions  
authority.**

7. A clerk whose benefice has been declared void under this Measure shall be entitled, subject to the provisions of this Measure, as from the date of avoidance, to receive during the remainder of his life from the pensions authority a pension of an amount ascertained in manner following (that is to say) :—

- (i) an older incumbent shall be entitled to receive a pension of such amount (if any) as he would have been entitled to receive under the Older Incumbents Measure, if he had retired on the date of avoidance under the Resignation Acts, as amended by the Older Incumbents Measure, on the ground that he was incapacitated from the due performance of his duties either by permanent mental or bodily infirmity, or by old age :

Provided that, in any case where the issue of a commission would be necessary under the Resignation Acts, as amended by the Older Incumbents Measure, if an older incumbent were retiring thereunder, no such commission shall be issued, but in lieu thereof the pensions authority shall, in order to give effect to the provisions of the foregoing paragraph, have the same powers

and act for all purposes as if they were a commission constituted under the Resignation Acts, as amended by the Older Incumbents Measure, and the older incumbent concerned were retiring thereunder, and shall specify in their report to the bishop the amount of pension which, in their opinion, ought to be allowed out of the revenues of the benefice to the older incumbent if he be retired hereunder :

- (ii) an incumbent other than an older incumbent shall be entitled to receive a pension of such amount (if any) as he would have been entitled to receive under the Clergy Pensions Measures, 1926 to 1936, had he retired thereunder on the date of avoidance, having attained the age of seventy years, or if the seventieth anniversary of his birth shall not have occurred before such date, had he retired by reason of permanent disability for the performance of his work or duties :

Provided that in any case where the issue of a commission would be necessary under section twenty-seven of the Clergy Pensions Measure, 1926, if the incumbent were retiring under the Clergy Pensions Measures, 1926 to 1936, no such commission shall be issued, but in lieu thereof the pensions authority shall, in order to give effect to the provisions of the foregoing paragraph, have the same powers and act for all purposes as if they were a commission constituted under section twenty-seven aforesaid, and the incumbent were retiring under the Clergy Pensions Measures, 1926 to 1936, and shall determine and in their report to the bishop certify such matters as a commission is required to determine and certify by paragraph (iii) of subsection (1) of section twenty-seven aforesaid.

8. The pension payable by the pensions authority to a clerk <sup>Payment</sup> whose benefice has been declared void under this Measure <sup>and of pensions.</sup> and any annual sum received by him by way of additional pension under this Measure shall—

- (i) if he is an older incumbent be paid subject to the fulfilment by the retired incumbent of the same conditions in all respects as if the same were an older incumbent's pension payable under the Older Incumbents Measure ;  
or
- (ii) if he is not an older incumbent be paid subject to the fulfilment by the retired incumbent of the same conditions in all respects as if the same were a pension payable under the Clergy Pensions Measures, 1926 to 1936,

Pension not  
to be decreased  
by reason of  
appointment  
of curate.

9. The amount of any pension payable by the pensions authority to any incumbent under this Measure and the proportion thereof which may be recovered by the pensions authority from the revenues of the benefice shall not be decreased by reason of the appointment of a curate or the assignment to such curate of part of the income of the benefice under this Measure.

## PART II.

### PAYMENTS FOR THE DISCHARGE OF THE DUTIES OF THE BENEFICE UNDER THIS MEASURE.

Stipends of  
curates.  
16 & 17 Geo. 5.  
No. 8.

10.—(1) Notwithstanding anything contained in Part II of the Benefices (Ecclesiastical Duties) Measure, 1926, every curate appointed under this Measure shall receive out of the income of the benefice such stipend as may be assigned to him by the bishop with the concurrence of the Committee. Provided that before concurring in the amount to be paid to the curate out of the income of the benefice in respect of such stipend the Committee shall have regard to any representations made by the incumbent as to his financial circumstances.

(2) Every stipend assigned to a curate under this Measure upon the occasion of his appointment shall be specified in the licence granted to him by the bishop

Payment for  
temporary  
duty.

11. In any case where under this Measure temporary provision is made by the bishop for the discharge of the duties attaching to the benefice the bishop may provide out of the income of the benefice or otherwise for payment for the same at the rate at which a clerk in Holy Orders is customarily paid for temporary duty in the diocese concerned.

Manner of  
payment for  
performance  
of duties.

12.—(1) In any case where the bishop has appointed a curate or curates or made other provision for the discharge of the duties of the benefice and any part of the income of the benefice is received from or paid through the Ecclesiastical Commissioners or Queen Anne's Bounty, the bishop may by a notice in writing addressed to the Ecclesiastical Commissioners or Queen Anne's Bounty, as the case may be, require that any income which has accrued, or may accrue, between the date of the notice and the next vacancy in the benefice, shall to the extent specified in such notice be paid to a person appointed by the bishop to receive the same.

(2) Such notice may be given at any time after the date on which the bishop has appointed a curate or curates or made other provision for the discharge of the duties of the benefice, and further notices varying or revoking the original notice may be given from time to time as occasion may require, but no such notice shall affect the periodical payment of income next due

unless received by the Ecclesiastical Commissioners or Queen Anne's Bounty, as the case may be, at least fourteen days before such payment becomes due.

(3) Receipt of such notice shall be sufficient authority to the Ecclesiastical Commissioners or Queen Anne's Bounty, as the case may be, from time to time during the currency of the notice to pay any income of the benefice as directed by the bishop, and the receipt of the person appointed by him shall be a valid discharge.

(4) Every notice given under the provisions of this section shall be in a form to be prepared for the purpose by the Ecclesiastical Commissioners and Queen Anne's Bounty, and when giving any such notice the bishop shall send a copy thereof to the incumbent concerned.

(5) In the case of Queen Anne's Bounty the expression "income" used in this section has the same meaning as "net income" in the Queen Anne's Bounty (Powers) Measure 1937. 1 Edw. 8. & 1 Geo. 6. No. 1.

### PART III.

#### GENERAL.

13. Any notice or other document required to be sent or given to an incumbent under this Measure shall be deemed to have been duly sent or given if sent through the post in a prepaid registered letter addressed to the parish or place whereof he is incumbent. Services of notices.

14. The bishop may act as bishop for the purposes of this Measure in relation to the incumbent of a benefice of which the bishop is patron. Bishop patron of benefice.

15. This Measure may be cited as the Incumbents (Disability) Measure 1945. Short title.

16. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may at any time before the expiration of two years from the date declared under section one of the Emergency Legislation Measure, 1944, to be the date on which the emergency that was the occasion of the passing of the Clergy (National Emergency Precautions) Measure, 1939, came to an end be applied to the Channel Islands, or either of them, as defined in the Channel Islands (Church Legislation) Measure, 1931, in accordance with the procedure set out in the schedule to that Measure. 8 & 9 Geo. 6. No. 1.  
2 & 3 Geo. 6. No. 3.

## SCHEDULES.

### FIRST SCHEDULE.

#### MINISTERIAL COMMITTEE.

##### PART I.

##### CONSTITUTION.

1.—(1) The clerks in Holy Orders beneficed or licensed under seal to officiate within the diocese in which the Ministerial Committee is constituted shall elect from among themselves twelve persons to be the members of the Committee :

Provided that no person shall be a member of the Committee of any diocese in which he shall for the time being hold the office of an archdeacon.

(2) (a) An election of the Committee shall be held in every diocese at a time to be appointed by the bishop as soon as may be practicable after the passing of this Measure and the members so elected shall be elected for such a period expiring not more than four years after the passing of this Measure as the bishop of the diocese shall by writing under his hand determine.

(b) Subject to the provisions of the foregoing subparagraph and of Part III of this Schedule, elections shall be held in every third calendar year at a time to be appointed by the bishop.

(3) Every election shall be conducted by such person as shall be appointed for the purpose by the bishop and candidates for election shall be nominated and seconded in writing by persons qualified to vote at such election. No person shall be nominated unless he shall have first signified in writing his consent to serve.

(4) Notice of any election together with a nomination paper shall be sent to every clerk in Holy Orders beneficed or licensed under seal to officiate in the diocese and a period of not less than fourteen days shall be allowed for the making of nominations. If after the expiration of this period fewer than the required number of persons shall have been nominated, the bishop shall have power to nominate a sufficient number of persons to make up the required number.

(5) Voting papers with the names in alphabetical order of the persons nominated shall be sent to all electors and such papers shall be signed on the back by the person voting and returned through the post to the person conducting the election. The election shall be made according to the principle of proportional representation by the method of the single transferable vote under rules to be approved from time to time by the archbishop of the province.

(6) Each candidate shall have the right to be present or to nominate one of the electors to be present on his behalf at the counting of the votes.

(7) If more than the required number of persons has been nominated, the six candidates who obtain the six highest places in the election shall be ordinary members of the Committee, and the six who obtain the next six places shall be reserve members. If not more than the required number of persons has been nominated the election shall be



held for the first six places only and the six candidates so elected shall be the ordinary members of the Committee and the remaining six candidates shall be the reserve members.

(8) With the assent of the diocesan conference given in accordance with the procedure laid down in section eight of the Diocesan Conference Regulation, 1935, the bishop may for the purpose of an election of members of the Committee divide the diocese into not more than three areas, and determine how many members shall be elected by the qualified electors in each area, provided that the number of members allocated to each area shall always be an even number. The election shall be conducted in such area as if such area were a separate diocese, and the candidates elected shall be equally divided into ordinary and reserve members.

(9) Every election of ordinary members and reserve members of the Committee under the foregoing provisions of this Schedule shall forthwith be certified to the bishop in writing under the hand of the person conducting the election and any such certificate shall be conclusive evidence of the due election of any person therein mentioned.

2. Everything which the Committee are by this Measure required or empowered to do shall be done by the six ordinary members of the Committee provided that—

- (1) if any ordinary member of the Committee shall vacate his office or be unable or unwilling to act in any particular case he shall nominate one of the reserve members of the Committee to serve accordingly :
- (2) if for any reason he is unable or unwilling to nominate a reserve member or fails to do so within fourteen days after being requested by the Chairman of the Committee in writing to do so, the chairman shall nominate a reserve member :
- (3) the reserve member nominated under either of the preceding paragraphs of this proviso shall for the purpose for which he is nominated have all the powers of an ordinary member of the Committee.

3. If during the course of the inquiry in any case any member of the Committee serving in the case retires or becomes unable to act, the inquiry shall nevertheless proceed unless any of the parties thereto shall object ; but if such objection be raised the inquiry shall be recommenced.

4. The ordinary members and the reserve members of the Committee shall, subject to the provisions of paragraphs 5 and 6 of this Part of this Schedule, hold office until the conclusion of the next ensuing election :

Provided that where the Committee have been instructed to act in any particular case, and at the conclusion of the next ensuing election have not completed their duties in respect of that case, the members of the Committee engaged in that case, shall continue in office for the purpose of that case only, and no new member elected at any such intervening election shall be qualified by reason of that election to act as a member of the Committee for the purposes of that case.

5. An ordinary member or reserve member of the Committee shall be disqualified from acting as a member of the Committee for any purpose in any case in which he is himself the subject of an inquiry under this Measure or under any Statute or Measure relating to clerical discipline.

6. A member (whether an ordinary or reserve member) of the Committee shall vacate his office as soon as he shall have ceased for a period of three months to be qualified as an elector or as soon as any order shall have been made against him under any Statute or Measure relating to clerical discipline.

7. Whenever an ordinary member of the Committee shall for any reason vacate his office one of the reserve members nominated by such ordinary member shall forthwith fill the vacancy so created and thereafter have all powers of an ordinary member of the Committee.

## PART II.

### PROCEDURE.

1. The Committee shall elect a chairman and shall have power to adjourn, and, subject to the provisions of this Measure, to determine their own rules of procedure.

2. Except as otherwise expressly provided by this or any other Measure every question submitted to a meeting shall be decided by a majority of the votes of those present, the chairman having a second or casting vote in the case of an equality of votes.

3. Five members shall be a quorum for a meeting of the Committee, and the Committee may act notwithstanding any vacancy in its body.

4. All proceedings at any meeting of the Committee shall be held in private.

## PART III.

### SPECIAL PROVISIONS.

In the carrying out of the provisions of this Schedule in any diocese, the bishop of such diocese shall have power which shall be exerciseable from time to time—

- (i) to direct that any election shall be held at a time earlier than that prescribed in Part I of this Schedule ;
- (ii) in any case in which any difficulty arises, to give any directions consistent with the provisions of this Schedule which he may consider expedient ;
- (iii) to make provision for any matter not provided for in this Schedule.

## SECOND SCHEDULE.

## FORM OF DECLARATION OF AVOIDANCE OF A BENEFICE.

In the matter of the Benefice of

We \_\_\_\_\_ by Divine Permission Lord  
Bishop of \_\_\_\_\_ by virtue of the powers  
conferred upon us by the Incumbents (Disability) Measure, 1945,  
do hereby declare as follows :—

1. The said benefice shall be void of the person of the said  
Rev. \_\_\_\_\_ to all intents and purposes of the  
law on and after the \_\_\_\_\_ day of \_\_\_\_\_ [subject  
nevertheless to the payment out of the revenues thereof to  
the Church of England Pensions Board in trust for the said  
Rev. \_\_\_\_\_ of the yearly sum of \_\_\_\_\_ pounds] :
2. The said Rev. \_\_\_\_\_ shall be entitled to a  
pension of \_\_\_\_\_ pounds per annum [inclusive of the yearly  
sum charged on the revenues of the said benefice as afore-  
said] payable by the Church of England Pensions Board [and  
to a further sum of \_\_\_\_\_ pounds per annum payable by the  
Diocesan Board of Finance] :
3. The said pension [and further annual sum] shall be payable by  
equal quarterly instalments (subject to any necessary  
apportionment) on the 31st March, 30th June, 30th Septem-  
ber, and 31st December in each year (the first of such instal-  
ments to be paid on the \_\_\_\_\_ 19 \_\_\_\_\_), and shall  
(subject to the provisions of the said Measure) continue to be  
payable during the life of the said Rev.

As Witness, &amp;c.

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FOR

Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E., Controller of His Majesty's Stationery Office  
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